

UNITED STATES DISTRICT COURT FOR THE
NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION

DEBRA NELSON,
Plaintiff,

vs.

Case No.: 3:25cv1447/MCR/ZCB

AMENTUM GOVERNMENT
SERVICES PARENT HOLDINGS,
LLC, et al.,
Defendants.

_____ /

ORDER

Plaintiff is proceeding *pro se* in this employment discrimination action. Before the Court is Plaintiff's "Motion for Leave to File Sixth Amended Complaint." (Doc. 46). Defendants do not oppose Plaintiff's request for leave to file a sixth amended complaint. (Doc. 49). As such, the Court will grant Plaintiff's motion to amend and this case will proceed on Plaintiff's sixth amended complaint (Doc. 47).¹ Since the sixth amended complaint is now the operative pleading and Defendants intend to file a new motion to dismiss (Doc. 49 at 4), the Court will terminate Defendants' prior motion to dismiss (Doc. 33) as it is now moot. *Phoenix*

¹ As mentioned in the Court's prior order, Plaintiff is advised that further amendments are unlikely to be granted. (Doc. 45 at 2 n.1).

Ent. Partners, LLC v. Jellyfish, LLC, No. 3:17CV929/MCR/GRJ, 2018 WL 10517181, at *1 (N.D. Fla. Apr. 12, 2018) (“[T]he amended complaint renders moot a motion to dismiss the original complaint because the motion seeks to dismiss a pleading that has been superseded.”).

Defendants also request twenty-one days, rather than the usual fourteen days,² to respond to the sixth amended complaint. (Doc. 49 at 4-5). Defendants state that good cause for the one-week extension exists given the substantial changes to Plaintiff’s operative pleading. (*Id.* at 3-5). Plaintiff opposes the extension. (*Id.* at 5). The Court finds good cause here and will grant Defendants twenty-one days to respond to the sixth amended complaint. Fed. R. Civ. P. 6(b)(1)(A).

Accordingly, it is **ORDERED** that:

1. Plaintiff’s “Motion for Leave to File Sixth Amended Complaint” (Doc. 46) is **GRANTED**. The sixth amended complaint (Doc. 47) is now the operative pleading in this case. The Clerk of Court is directed to modify the docket to title Doc. 47 as “Sixth Amended Complaint.”

² Fed. R. Civ. P. 15(a)(3).

2. The Clerk of Court is further directed to **TERMINATE** Defendants' motion to dismiss (Doc. 33) because it is now moot.

3. Defendants' motion for extension of time (Doc. 49) is **GRANTED** to the extent that Defendants' response to the sixth amended complaint (Doc. 47) is due within **twenty-one days** of the date of this order.

SO ORDERED this 3rd day of February 2026.

/s/ *Zachary C. Bolitho*
Zachary C. Bolitho
United States Magistrate Judge